

7.	23CV1187	MYRA LYNN MOORE VS. CHAD HANSEN, ET AL
MOTION FOR INTERLOCUTORY JUDGEMENT		

This suit is a partition action that seeks the sale of real property containing a single-family home located at 3940 Freedom Road in Placerville, CA (the "Property"). On March 13, 2026, the court granted Defendant's Motion for Judgment on the Pleadings, Motion to Compel Responses, and Motion to Deem Requests for Admission Admitted, but did not enter an interlocutory judgment, appoint a referee, or give the referee instructions.

Defendant and Cross-Complainant (hereinafter "Defendant") moves the court to enter an interlocutory judgment ordering the Property to be sold, appoint Franco Garcia to sell the Property, and provide instructions as set forth on the Proposed Order. The parties appeared before the court for hearing on May 15, 2026, at which time the court continued the matter to the present date.

Code of Civil Procedure section 873.010 provides that the court "shall appoint a referee to divide or sell the Property as ordered by the court." Similarly, Section 873.020 states that "the court in its discretion may appoint a referee for sale and a referee for division, or may appoint a single referee for both." Once appointed, "[t]he referee may perform any acts necessary to exercise the authority conferred by this title or by order of the court." Cal. Civ. Pro. § 873.060. Furthermore, "[t]he referee or any party may, on noticed motion, petition the court for instructions concerning the referee's duties." Cal. Civ. Pro. § 873.070.

In accordance with the foregoing, Defendant requests that the court appoint Mr. Garcia as the referee and issue the following instructions regarding the referee's duties in relation to the partition and sale of the Property: that the Property be sold 'as-is,' for cash, that the notice of the sale shall be given pursuant to statute, that the referee shall provide the court with details of the sale, and that the court shall retain jurisdiction over the matter. The court finds that it has authority to make the orders requested and, in light of the fact that Defendant's prior Motion for Judgment on the Pleadings was granted, the court finds the requested order to be proper under the circumstances. The request for an interlocutory judgment is granted. Franco Garcia is hereby appointed as the referee to sell the Property. The remaining requests in Defendant's moving papers are granted, and the court will sign the [Proposed] Interlocutory Judgment, and Notice of Entry of Judgment.

On May 8, 2026 Defendant filed a notice of non-opposition to the motion.

The court granted to motion as requested. Parties requested a continuance as they believed they may be able to reach a settlement.

**TENTATIVE RULING #7: APPEARANCES ARE REQUIRED JUNE 12, 2026 AT 8:30AM IN
DEPARTMENT 9. P**

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.